

**Court No. - 9**

**Case :-** WRIT - C No. - 64967 of 2009

**Petitioner :-** M/S Shree Sidhballi Steels Ltd. And Another

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** B.C. Rai

**Respondent Counsel :-** C.S.C., Pankaj Kr. Shukla

**Hon'ble Vijay Manohar Sahai, J.**

**Hon'ble Yogesh Chandra Gupta, J.**

We have heard learned counsel for the petitioners, learned standing counsel appearing for the respondent no.1 and Sri Pankaj Kumar Shukla learned counsel appearing for the respondents no. 2 to 5.

Learned counsel for the petitioners has urged that the petitioners have made representation that their factory be supplied electricity from the independent feeder and they have further prayed that electricity be not supplied to any other person or other factory from the feeder of the petitioners, the cost of which would be borne by the petitioners. But without supplying electricity to the petitioners, the respondents are violating the terms of the agreement and are not providing electricity to the petitioners from independent feeder line.

Interim mandamus is issued to the respondents to provide independent power line to the petitioners as per clause 3D(8) of the Electricity Supply Code, 2005 within a period of one month from the date of production of a certified copy of this order before him or show cause by filing the counter affidavit within the same period.

List this case in the first week of January 2010.

**Order Date :-** 1.12.2009

SC

**Court No. - 1**

**Case :-** WRIT - C No. - 64967 of 2009

**Petitioner :-** M/S Shree Sidhali Steels Ltd. And Another

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** B.C. Rai

**Counsel for Respondent :-** C.S.C., Pankaj Kr. Shukla

**Hon'ble Ramesh Sinha, J.**

**Hon'ble Ajit Kumar, J.**

Sri B.C. Rai, learned counsel for the petitioners states that his client is not responding.

Sri Arun Kumar Srivastava, learned Standing Counsel is present.

Accordingly, the present petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

**Order Date :-** 13.8.2019

Madhurima